

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 22-23

Marine Transport Logistics, Inc. v. CMA CGM, S.A.

PARTIAL CONSENT MOTION TO EXTEND DISCOVERY

Respondent CMA CGM, S.A. (Respondent or CMA) hereby moves for extension of the discovery period (in two different respects) to account for the facts that:

- (i) The deposition of Complainant Marine Transport Logistics, Incorporated's (Complainant or MTL) chief witness – Alla Solovyeva – was scheduled by agreement of the Parties for January 15, 2024 but was canceled by Complainant's counsel at the last minute based on alleged medical circumstances affecting Ms. Solovyeva, and a new date has been offered by MTL and accepted by CMA for Saturday, January 27, 2024; and
- (ii) Third Party CIS Development Foundation, Inc. (CIS) has not yet responded to the subpoenas for documents and testimony issued by the Presiding Officer on December 13, 2023 and served on CIS on December 15, 2023; nor has CIS moved to quash the subpoena, so that CMA is forced to enforce the subpoenas in the United States District Court for the District of New Jersey, which it will do on January 19, 2023, five business days after it submitted notice of its intent to do so.

Based on these facts, Respondent respectfully requests that the Presiding Officer: (i) extend the date for finishing depositions from January 19 to January 28, 2024 (just in case the January 27 date slips) and concomitantly extend the last day to make supplemental discovery requests from January 26, 2024 to February 2, 2024, so that CMA has time to make such requests after the depositions end, as the Parties intended; and (ii) extend the deadline for completion of CMA's discovery of CIS (without changing any other deadlines) to the earlier of two dates: (a) the date

on which the deposition of CIS is taken or (b) the date on which the District Court denies enforcement of the subpoenas.

Counsel for the respective Parties have conferred as to the proposed extension for the taking of Ms. Solovyeva's deposition on January 27, 2024 and for moving the deadline for supplemental discovery to February 2, 2024, and counsel for Complainant has consented to these requests. As to the extension relating to CIS, counsel for complainant has not consented, at least not yet.

We elaborate below.

MEMORANDUM IN SUPPORT

The Parties are near completion of discovery in this proceeding, pending only decisions by the Presiding Officer on their respective motions to compel and the deposition of Ms. Solovyeva and discovery from CIS. *See* Complainant's Motion to Compel (served December 22, 2023); Respondent's Response to Motion to Compel and Cross-Motion (served December 29, 2023). Counsel for Complainant deposed CMA witnesses Andre Ristic and Antwaun Majors on January 12, 2024, and Counsel for Respondent deposed MTL witness Julia Privalova on January 13, 2024.¹

1. Ms. Solovyeva. The deposition of Ms. Alla Solovyeva, the owner of MTL, was set for the morning of Monday, January 15, 2024. However, late on Friday, January 12, MTL's counsel sent an email stating: "I just found out that Alla has to have an urgent medical procedure

¹ CMA notes (to which MTL may disagree) that the deposition of Ms. Privalova was substantially hampered by the failure of MTL to produce the documents that are the subject of CMA's pending Motion to Compel, as documents are a principal part of a fair deposition. CMA agrees not to seek any further deposition of Ms. Privalova on that basis but does in fact require such documents to properly depose MTL's chief witness, Ms. Solovyeva.

on Monday morning, so she will not be able to appear for a deposition on Monday.” MTL counsel initially stated (on January 13) that he did not know when Ms. Solovyeva would be available, but that he would agree to an extension of discovery so that Ms. Solovyeva could be deposed in a timely fashion vis-à-vis the remaining schedule. Then, on January 15, counsel for MTL offered the weekend of January 27 and 28, 2024. Counsel for CMA accepted the January 27 date.

The Parties also have agreed to request an extension of the deadline for supplemental discovery requests, which were designed to follow shortly after the close of depositions, to February 2, 2024. This will allow CMA a brief time after depositions conclude to make any such requests.

2. CIS Development Foundation. The two subpoenas were served on CIS on December 15, 2024, and CIS had until January 2, 2024 to move the Presiding Officer for an order quashing one or both of them. When that date passed without response from CIS, Counsel for CMA attempted to contact CIS by telephone, apparently resulting in nothing more than a call from CIS to MTL’s Counsel (who is not counsel to CIS) and an email from MTL Counsel to CMA Counsel stating:

“According to Maria from CIS Development, somebody from CMA keeps harassing her, trying to get information, saying that they will continue to call... To the extent that you can find out what is going on, if this is accurate, please tell whoever is doing this to stop.

Thank you.”²

Given CIS’ failure to move the Presiding Officer to quash the subpoenas or to respond thereto, and its unwillingness to even communicate (with us) about the subject, on January 12, 2024, CMA

² Such coordination between a Complainant’s counsel and a third party witness strikes us as strange, but we do not know what to make of it.

filed with the Commission its requisite notice of intent to enforce subpoenas, as to which it will file with the United States District Court for the District of New Jersey once the five-day waiting period expires.

It is essential that CMA be afforded a chance to obtain discovery from CIS. According to MTL itself, its claim of lost business is founded entirely on the cargo it did or did not receive from CIS during the relevant period. Surely, CMA is entitled to learn from CIS, *inter alia*, whether CIS in fact withheld any business from MTL; if so, the amount of business withheld; and whether any such withholding was the result of any actions taken by CMA.

CMA therefore respectfully requests an Order revising the Procedural Schedule as follows:

- (1) January 28, 2024 – deadline for depositions extended for the deposition of Alla Solovyeva;
- (2) February 2, 2024 – deadline for supplemental discovery requests; and
- (3) Indefinite extension of the close of discovery, but only for the purpose of taking discovery from CIS, pending the ruling of the District Court.

DATED: January 17, 2024

Respectfully submitted,

/s/_____

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ATTORNEYS FOR RESPONDENT

CERTIFICATE OF SERVICE

I certify that on this 17th day of January, 2024, a true and correct copy of *Partial Consent Motion to Extend Discovery* was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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